

Supplier Relationship Agreement #CW3036229

Using this Supplier Relationship Agreement (SRA or **Base Agreement**), IBM China/Hong Kong Limited (IBM or **Buyer**) may order deliverables (**Deliverables**) and services (**Services**) available from **George P Johnson Company Hong Kong Limited (Supplier)** for itself or on behalf of its customers (**Customers**). Details regarding the Deliverables and Services are provided in Statements of Work (**SOWs**) and/or Work Authorizations as defined in Section 2 below. This SRA, applicable SOWs, together with any Attachments and the quantity, payment and delivery terms of the Work Authorization are the complete agreement (**Agreement**) regarding transactions hereunder. The effective date of this SRA will be the date of the last party's signature.

1. Deliverables and Services

Deliverables consisting of Programs and Products

A **Program** is a software program and related material available for license from Supplier. Programs are copyrighted and licensed (not sold) and a **Product** is a tangible item (other than a Program) that Supplier prepares for or provides to IBM. Applicable Program and Product details are described in a SOW or Attachment.

Services consisting of Cloud Services and Other Services

A Cloud Service is an offering hosted or managed by Supplier and made available via a network. Other Services, in addition to Cloud Services, may include consulting, installation, customization and configuration, maintenance, staff augmentation, and business, technical or other services (each, a **Service**). Applicable Service details are described in a SOW, WA or Attachment.

Deliverables and/or Services will be delivered as specified in a SOW and/or WA. If Supplier cannot comply with a delivery commitment, Supplier will promptly notify IBM and IBM may cancel without charge Deliverables or Services not yet delivered and exercise any and all other remedies available to it.

Except as otherwise specified in a SOW or Attachment, Supplier will only use the information, materials, assets, data (including any data that can identify or locate an individual (**Personal Data**)) and documents provided to Supplier or uploaded to or stored in a Cloud Service by IBM or its users (collectively, **IBM Materials**) as needed to perform under this Agreement. Supplier will not disclose IBM Materials to any third party and will return or destroy IBM Materials (and certify to IBM regarding the same) upon the earlier of the expiration of the relevant SOW or WA or IBM's request.

2. Issuance of a Work Authorization and Pricing

Unless otherwise set forth in a SOW, Supplier will begin work only after receiving a Work Authorization (**WA**) from IBM. A WA is IBM's authorization in either electronic or tangible form for Supplier to conduct transactions under this SRA in accordance with the applicable SOW (i.e., a purchase order, bill of lading, or another IBM designated document). A SOW is a WA only if designated as such in writing by IBM. The agreed upon pricing and currency for Deliverables and Services, exclusive of Taxes but including all applicable fees and royalty payments (**Prices**), shall be set forth in the SOW and/or WA. The Prices for Deliverables and Services specified in a SOW and/or WA plus applicable Taxes will be the only amount due to Supplier from IBM. Payment of invoices does not constitute acceptance of Deliverables or Services. Deliverables and Services are subject to inspection, test, acceptance or rejection in accordance with the relevant SOW and/or WA. Supplier must submit invoices and any other claims for reimbursement to IBM within one year from the date of IBM's acceptance of Deliverables or Services.

3. Warranties

Supplier warrants on an ongoing basis that i) its performance of the Agreement will comply with all applicable laws and the terms of any contracts applicable to it (including licensing agreements); ii) Deliverables and Services do not infringe any privacy, intellectual property or other right of a third party; iii) Deliverables are safe for use with, and will comply with, the warranties and requirements in this Agreement; iv) it has disclosed to IBM in writing the existence of third party or open source code in, or provided with, Deliverables; v) Deliverables do not contain harmful code; vi) will comply with import, export control and economic sanction laws and regulations, including those of the United States, that prohibit or restrict the export, re-export, or transfer of products, technology, services or data, directly or indirectly, to or for certain countries, end uses or end users. Supplier will not export, directly or indirectly, any technology, software or commodities provided by IBM under this Agreement to any prohibited destination or for any prohibited end use. Supplier will provide IBM with information about Deliverables and Services necessary for export compliance.; vii) Programs and Services conform to their

official published specifications and Supplier will not electronically or otherwise disable, remove or otherwise prevent the use of a Program or Service; viii) it will use all IBM Materials and Developed Works (as defined in Intellectual Property below) under this Agreement solely in the performance of this Agreement; ix) it has implemented and will maintain technical and organizational security measures to protect IBM Materials against loss, alteration, unauthorized disclosure, access or other unlawful forms of processing including, without limitation, not loading any IBM Materials provided to Supplier on any laptop computers or portable storage media unless such materials have (or the device itself has) been encrypted; x) it will report to IBM any actual or suspected breaches of security of IBM Materials immediately after discovery thereof if the IBM Materials were, or could be, accessed, used or acquired by an unauthorized person or entity or otherwise compromised; and xi) Services are provided using reasonable care and skill in accordance with this Agreement.

THE WARRANTIES IN THIS AGREEMENT ARE IN LIEU OF ALL OTHER WARRANTIES AND CONDITIONS, EXPRESS OR IMPLIED, INCLUDING THE WARRANTIES OR CONDITIONS OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

Subject to the Indemnity section, if Deliverables or Services do not comply with the warranties in this Agreement or the acceptance or completion criteria, IBM may reject the Deliverables or Services and Supplier will repair, replace or re-perform the Deliverables or Services without charge and in a timely manner. If Supplier cannot do so within ten (10) business days or any mutually agreed upon (in writing) time period, Supplier will refund all fees paid by IBM for such Deliverables and/or Services.

4. Ethical Dealings

Supplier will be familiar and will strictly comply with all laws and regulations on bribery, corruption, and prohibited business practices. Supplier and its Affiliates have not and will not, for the purpose of influencing or inducing anyone to influence decisions in favor of IBM or its Affiliates, offer, promise or make or agree to make, directly or indirectly, (a) any political contributions of any kind or any payment to or for the benefit of any public official, whether elected or appointed, (b) any payments for gifts, meals, travel or other value for a government employee or his/her family members or (c) any payments or gifts (of money or anything of value) to anyone. IBM shall not reimburse Supplier for any such political contributions, payments or gifts. **Affiliates** are entities that control, are controlled by, or are under common control with, a party to this Agreement.

5. Taxes

Supplier's invoices shall state all applicable Taxes, if any, by tax jurisdiction and with a proper breakdown between taxable and non-taxable Services and Deliverables. Supplier shall also bear sole responsibility for all taxes, assessments, or other levies on its own income, leased or purchased property, equipment or software. If IBM provides a direct pay certificate, certification of an exemption from Tax or reduced rate of Tax imposed by an applicable taxing authority, then Supplier agrees not to invoice or pay any such Tax unless and until the applicable taxing authority assesses such Tax, at which time Supplier shall invoice and IBM agrees to pay any such Tax that is legally owed. IBM shall withhold Taxes as required under applicable law on payments made to Supplier hereunder and shall be required to remit to Supplier only the net proceeds thereof. IBM agrees to remit in a timely manner all Taxes withheld to the appropriate government authority in each respective jurisdiction. Upon IBM request, Supplier will deliver the appropriate documentation as required by the corresponding jurisdictional tax laws, within 15 business days from such request. **Taxes** means any and all applicable taxes, charges, fees, levies or other assessments imposed or collected by any governmental entity worldwide or any political subdivision thereof and however provided by Supplier to IBM under or pursuant to the Agreement, exclusive, however, of any taxes imposed upon the net income or capital of

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Supplier, any taxes in lieu of such net income taxes and any other taxes which are to be borne by Supplier under law.

6. Intellectual Property

IBM will own the copyright in works of authorship that Supplier develops for IBM under this Agreement (**Developed Works**) and all such works are works made for hire. If any Developed Works are not considered works made for hire owned by operation of law, Supplier assigns the ownership of copyrights in such works to IBM.

Developed Works exclude **Preexisting Works** and **Tools**. Preexisting Works include works of authorship delivered to IBM, but not developed by Supplier specifically for IBM under the SOW, and any modifications or enhancements of such works made under the SOW.

Tools means software that is not commercially available, and its Externals, required for the development, maintenance or implementation of a software Deliverable other than a Program. **Externals** means any pictorial, graphic, audiovisual works, reports or data generated by execution of code and any programming interfaces, languages or protocols implemented in the code to enable interaction with other computer programs or end users. Externals do not include the code that implements them.

This Agreement does not grant either party the right to use the other party's or their Affiliates' trademarks, trade names or service marks, or other designations in any promotion or publication, without prior written consent.

7. Liability

Neither party will be liable to the other for special, incidental, exemplary, indirect, or economic consequential damages, or lost profits, business, value, revenue, goodwill, or anticipated savings. The following amounts, if a party is legally liable for them, are not subject to the above limitation: i) amounts arising from third party claims for which IBM is indemnified (see Indemnity below); ii) damages for bodily injury (including death); iii) damages to real property and tangible personal property; and iv) damages that cannot be limited under applicable law.

8. Indemnity

Supplier will defend, hold harmless and indemnify, including legal fees, IBM against third party claims that arise or are alleged to have arisen, and/or government fines and penalties that are imposed, as a result of negligent or intentional acts or omissions of Supplier or Supplier Personnel or breach by Supplier of any term of this Agreement. **Personnel** are individuals who are i) employees of a party, ii) agents appointed by a party, iii) independent contractors engaged by a party, or iv) provided to a party by a Subcontractor. A **Subcontractor** is an individual (independent contractor), a corporation, a partnership, a limited liability company or other entity to which (or to whom) work to be performed under this Agreement has been subcontracted by Supplier to the extent permitted under this Agreement.

Supplier will defend, hold harmless and indemnify, including legal fees, IBM from third party claims that Supplier's Deliverables or Services infringe the intellectual property rights of a third party. In addition, Supplier, at its own expense, will: i) obtain for IBM the right to continue to use, sell and license the Deliverables or Services; ii) modify the Deliverables or Services so they are non-infringing; or iii) replace the Deliverables or Services with non-infringing ones that comply with this Agreement. Alternatively, at IBM's request, Supplier will accept the cancellation of infringing Deliverables or Services without any cancellation liability and Supplier shall refund any amounts previously paid by IBM. IBM will give Supplier prompt notice of third party claims against IBM, and cooperate in the investigation, settlement and defense of such claims.

9. Term and Termination

This SRA will remain in effect until terminated. Either party may terminate this SRA for cause if the other is in material breach of this Agreement or, to the extent permitted by law, if the other party becomes insolvent or files or has filed against it a petition in bankruptcy, provided the one who is not in breach gives written notice (with the termination date) and, when in IBM's discretion a material breach can be cured, a reasonable opportunity to cure.

Supplier's breach (or IBM's reasonable belief that Supplier has breached or is likely to breach) of the Ethical Dealings provision of this SRA constitutes a

material breach of this Agreement and, in such event IBM may terminate this Agreement immediately on written notice to Supplier, without any liability to IBM. When there are no SOWs or WAs in place between the parties, IBM may terminate this SRA without cause by providing written notice to Supplier. Any terms that by their nature extend beyond the Agreement termination remain in effect until fulfilled, and apply to successors and assignees.

IBM may, upon written notice to Supplier, terminate a SOW or WA i) for cause upon material breach by Supplier or ii) without cause, in each case with termination effective on the date set forth in the notice. Upon termination, in accordance with IBM's written direction, Supplier will cease work under the relevant SOW or WA and deliver to IBM, among other things, all Deliverables completed as of the date of termination and all works in progress.

10. Insurance

Supplier will maintain at its expense (and provide certificates of insurance at IBM's request) i) all statutory mandated insurance such as workers' compensation and employer's liability, ii) commercial general liability insurance including products liability and completed operations with a minimum per occurrence limit of 5,000,000 USD (or local currency equivalent), and iii) automobile liability insurance (if a vehicle is to be used in performance of this Agreement) of at least 5,000,000 USD (or local currency equivalent). Commercial general liability insurance and automobile insurance policy limits may be met through a combination of primary and umbrella/excess liability insurance and must name IBM as an additional insured. Insurance required under a SOW, WA or Attachment must be purchased either from insurers with an AM Best Rating of A- or better, or with a Standard & Poor's rating of BBB and \$50M in policy holder's surplus or greater.

11. Record Keeping and Audit Rights

Supplier will maintain (and subject to applicable law provide to IBM upon request) relevant business, technical and accounting records i) to support Supplier's invoices; ii) show proof of required permits and professional licenses and iii) to demonstrate compliance with Supplier's performance of its obligations under this Agreement, for not less than six (6) years following completion or termination of the relevant Services. All accounting records will be maintained in accordance with generally accepted accounting principles.

Upon IBM's notice, IBM may, at no charge to IBM, audit Supplier's compliance with its obligations under this Agreement, including verifying compliance with applicable laws and the protection and integrity of IBM Materials. In connection with an audit, Supplier shall provide IBM (including its auditors and any regulators) access at reasonable times (or in the case of regulators, at any time designated by such regulators), to any facility at which Supplier or any Subcontractor is providing or has provided Services or Deliverables under this Agreement and to all systems, data and business, technical and accounting records relating to Supplier's (and any Subcontractor's) compliance with its obligations. Supplier shall provide its full cooperation in any such audit, including by designating a focal point to support an audit and, if required by IBM, promptly securing the rights for IBM to directly request from any Subcontractor, and for the Subcontractor to promptly provide to IBM, access to such systems, data and records relating to the work performed by such Subcontractors.

12. Governing Law

Except as otherwise set forth in a SOW or in a Participation Attachment, if any, the parties agree to: i) the application of the laws of the State of New York for all Agreements executed by International Business Machines Corporation (IBM Corp.) or Affiliates of IBM Corp. located in the U.S. or ii) for Affiliates of IBM Corp. not located in the U.S., the laws of the country where such Affiliate is located, without regard to conflict of law principles. If any provision of the Agreement is invalid or unenforceable, the remaining provisions remain in full force and effect. Nothing in the Agreement affects statutory rights that cannot be waived or limited by contract. The United Nations Convention on Contracts for the International Sale of Goods does not apply to transactions under this Agreement. The parties waive the right to a jury trial regarding disputes related to this Agreement. Neither party will bring a legal action arising out of or related to this Agreement more than two years after the cause of action arose. No right or cause of action for any third party is created by this Agreement or any transaction under it.

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13. Business Continuity

Supplier agrees to have and maintain a business continuity plan and business continuity testing procedures, which include but are not limited to the areas of disaster recovery planning and pandemic planning, and cyber security. Cyber security programs must include, at a minimum, provisions to prevent, detect and respond to cyber security incidents. Supplier agrees to review, update, and test the business continuity plan annually and, upon IBM's request, Supplier will provide a summary of the business continuity plan and test results. IBM may, from time to time, provide feedback regarding the plan and requests that Supplier take IBM's comments into consideration when updating the plan. However, Supplier remains solely responsible for the performance of its responsibilities under the Agreement and the adequacy of the business continuity plan regardless of whether IBM has reviewed or commented on the plan.

14. Supplier and Supplier Personnel

Supplier:

- (a) shall, upon request of IBM and to the extent permitted by applicable law, provide to IBM (I) for export evaluation purposes, the country of citizenship and permanent residence and immigration status of its Personnel, (II) written confirmation (i) that Supplier Personnel are eligible to work in the country where the Services are being provided and (ii) to the extent required by applicable law, that Supplier participates in eVerify pursuant to applicable Executive Order(s) and United States Department of Homeland Security, and (III) if specific education requirements are required by IBM, proof of education for Supplier Personnel;
- (b) shall instruct its Personnel that employment related issues should be brought forward to Supplier (and not IBM) and shall notify IBM promptly where such issues relate to actions which are alleged to have been taken by IBM or its Personnel to enable IBM to investigate as necessary;
- (c) is and shall remain responsible for the day to day supervision, control, terms and conditions, hiring, verification of eligibility to work, discipline, performance management, termination, counseling, scheduling, compensation, benefits and other activities, withholdings, health and safety of Supplier Personnel, and shall ensure Supplier Personnel do not seek to obtain the same from IBM;
- (d) acknowledges that IBM has no responsibility for reviewing or approving timesheets; however, IBM may review such timesheets for billing verification purposes only;
- (e) is responsible for the actions and inactions of Supplier Personnel and compliance by Supplier Personnel with the requirements of this Agreement;
- (f) agrees that IBM retains the right to refuse to accept Supplier Personnel made available by Supplier to perform Services hereunder and may request the removal of Supplier Personnel from assignment under this Agreement, for any lawful reason at IBM's sole and reasonable discretion.

14.1 IBM Assets

Supplier shall instruct Supplier Personnel to:

- (a) use IBM Assets only for purposes of this Agreement and Supplier will reimburse IBM for any unauthorized use;
- (b) only connect with, interact with or use programs, tools or routines that IBM agrees are needed to provide Services;
- (c) not copy, disclose or leave IBM Assets unsecured or unattended;
- (d) promptly notify IBM of any accident or security incidents (such as those involving loss or misuse of, or damage to, IBM Assets (as defined below), and Supplier will provide IBM with a copy of any accident or security incident report involving the above.

IBM may periodically audit Supplier's use of IBM Assets. "IBM Assets" means IBM's or Customer's computer systems and/or networks, IBM's or Customer's property that is accessed or used by Supplier Personnel or materials, data,

documents or information provided to Supplier Personnel by (or on behalf of) IBM.

14.2 Supplier Access to IBM or Customer Premises

- i). If Supplier Personnel will have access to IBM or Customer premises, Supplier shall conduct orientation sessions with its Personnel before placement on an assignment with IBM or Customer and identify and provide contact information (which shall be updated by Supplier as necessary) for all supervisor(s) for Supplier Personnel.
- ii). Supplier shall instruct Supplier Personnel as follows:
 - (a) Supplier Personnel on IBM's or Customer's premises may not (i) bring weapons of any kind onto such premises; (ii) possess, use or be under the influence of controlled substances or alcoholic beverages; (iii) have in their possession hazardous materials of any kind without IBM's authorization; (iv) send or receive non-IBM or Customer email through IBM's or Customer's mail systems; (v) sell, advertise or market any products or distribute printed, written or graphic materials without IBM's written permission; or (vi) conduct any non-IBM or Customer related business activities while assigned to work under this Agreement.
 - (b) Supplier Personnel on IBM's or Customer's premises must (i) obtain a valid identification badge from IBM or Customer and return identification badges upon completion or termination of assignments; (ii) remain in authorized areas only (limited to work locations, cafeterias, restrooms and parking lots); (iii) access and use for work only the materials, documents, information and data necessary to perform and (iv) immediately report to Supplier any incidents (such as actual or alleged physical alterations, assaults, harassment and/or inappropriate behavior) so that Supplier can promptly notify IBM and provide IBM with a copy of any incident report.

14.3 Criminal and other Background Checks

- (a) Supplier shall inform IBM if any Supplier Personnel to be assigned to perform Services hereunder are former employees of IBM, which assignment is subject to IBM's approval.
- (b) To the extent permitted by local law, Supplier will obtain from Supplier Personnel photographic proof of identity from an official government source (including but not limited to documentation such as a valid driver's license or government issued passport).
- (c) To the extent permitted by local law, Supplier will conduct or otherwise obtain criminal background checks on Supplier Personnel as defined in section (d) below, in locations where the Supplier Personnel resided for the past seven years. Where no criminal convictions within the past seven years are identified, Supplier Personnel may be assigned to perform Services. Where a criminal conviction is identified, Supplier may not assign Supplier Personnel where Supplier Personnel is disqualified from performing Services based on Supplier's individualized assessment of the conviction against the Services to be performed in accordance with applicable law and guidance, which may include but is not limited to the Equal Employment Opportunity Commission's promulgated guidance in the United States or similar state or other government promulgated guidance, as applicable.
- If, after such assessment, Supplier still recommends assigning a Supplier Personnel with a criminal conviction to perform Services, IBM must first be informed of such decision. IBM will thereafter review the criminal conviction and Services which will be performed and/or access that the Supplier Personnel will have. Unless otherwise required for this review, IBM will not receive any personally identifiable information (e.g., Supplier Personnel name, social security number, etc.)
- (d) For Supplier Personnel in the United States, a Federal background check must be conducted as well as a county or state background check, whichever is more comprehensive. In other countries, background checks may be at the county, state, province and/or country level, whichever is most comprehensive.

- (e) Upon IBM request and subject to applicable law, Supplier will provide documentation to IBM to verify its compliance with this section.

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15. General

- i) A party will not disclose confidential information to the other without a separate, signed confidentiality agreement governing such disclosures.
- ii) Any licenses accompanying the Programs, and any shrink wrap, click wrap, cloud services, or online terms for Services are null and void, and the terms and conditions of the Agreement prevail.
- iii) The parties will not publicize their relationship in any advertising; marketing or promotional materials without prior written consent of the other party except as may be required by law.
- iv) IBM may process and store business contact information of Supplier Personnel in connection with the performance of this Agreement wherever IBM does business.
- v) The Agreement is nonexclusive and either party may design, develop, manufacture, acquire or market competitive products or services. Each party is responsible for determining the assignment of its Personnel.
- vi) All changes to the Agreement must be in writing signed by both parties. In the event of a conflict, the order of precedence will be: A) any accepted changes to price, payment, quantity or delivery terms contained in the WA; B) the relevant SOW (including Attachments thereto); and C) this SRA (including Attachments thereto).
- vii) Supplier is an independent contractor and this Agreement does not create an agency, partnership or joint venture relationship between IBM and Supplier or Supplier Personnel. IBM assumes no liability or responsibility for Supplier Personnel.
- viii) Parties shall be responsible for the damage, destruction, loss or theft ("**Loss**") of their respective tangible property (whether owned or leased). Parties shall look to their own insuring arrangements regarding such Loss.
- ix) Neither party may assign its rights under this Agreement to third parties or Affiliates without the prior written consent of the other party, such consent not to be unreasonably withheld; except that either party may assign this Agreement in conjunction with the sale of a substantial portion of its business utilizing the Agreement. Any unauthorized assignment of this Agreement is void. Supplier shall not delegate or subcontract any of its duties or obligations under this Agreement to any third party, Subcontractor or Affiliate, except to the extent permitted in a SOW.
- x) An effective waiver under the Agreement must be in writing signed by the party waiving its right. A waiver by either party of any instance of non-compliance by the other will not be deemed a waiver of future instances of non-compliance.

- xi) All notices under the Agreement must be in writing and sent to the address below, unless a party designates in writing a different address (or an Affiliate designates a different address in a Participation Attachment). "**Participation Attachment**" or "**PA**" means an attachment signed by one or more Affiliates which incorporates by reference the terms and conditions in this SRA, any relevant SOW and/or WA, and other attachments or appendices specifically referenced in the PA.
- xii) The parties consent to the use of electronic means and facsimile transmissions for communications as a signed writing. This SRA, and any SOWs and Attachments may be signed in one or more counterparts. Any reproduction of this Agreement made by reliable means is considered an original. This Agreement supersedes any prior course of dealing, discussions or representations between the parties regarding the subject matter hereof.
- xiii) Neither party will be in default or liable for any delay or failure to comply with this Agreement due to any act beyond the control of the affected party, excluding labor disputes, provided such party immediately notifies the other.
- xiv) This SRA applies to IBM and Supplier (the signatories below) and their respective Affiliates who avail themselves of the SRA by entering into a SOW or Participation Attachment under this SRA. Such Participation Attachments and/or SOWs and/or WAs entered into by Affiliates of either of the parties are independent agreements between the signatories thereto. IBM is not liable to Supplier or Supplier Affiliate for any actions or inactions of any Affiliate of IBM, nor shall any action or inaction by Affiliates of IBM constitute a breach of this Agreement between IBM and Supplier.
- xv) In situations where Supplier will be providing Services or Deliverables to a Customer of IBM (whether directly or indirectly through IBM), references to IBM shall be deemed to include the Customer in the following sections of this SRA: Deliverables and Services; WA and Pricing (with respect to delivery and acceptance); Warranties, Intellectual Property; Indemnity; Supplier and Supplier Personnel; and Record Keeping and Audit Rights.
- xvi) The following provisions shall survive termination or expiration of this SRA and shall remain in effect until fulfilled: Warranties; Taxes; Intellectual Property; Liability, Indemnification; Record Keeping and Audit Rights; Governing Law; Supplier and Supplier Personnel; and General. Without limiting the foregoing, all licenses under this Agreement will survive to the extent necessary to allow IBM to continue providing services to its Customers who are Supplier's licensees, notwithstanding the termination or expiration of this Agreement.



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Amendments for Hong Kong

The following terms and conditions apply to transactions performed entirely within Hong Kong only and amend the other provisions of the Supplier Relationship Agreement (hereinafter referred to as the "SRA") to bring the conduct of the parties' transactions into conformity with local law and practice.

1.1. Ethical Dealings

The following clauses shall be added to the Section titled "Ethical Dealings" in the SRA:

1. Supplier has not and will not partake in any actions in relation to the transactions contemplated herein in violation of all laws and regulations on bribery, corruption and prohibited business practices;
2. Unless expressly disclosed to IBM in writing prior to the execution of this Agreement, Supplier does not know nor has reason to believe that any of the owners, principals or senior management of Supplier, its Affiliates, or lower tier subcontractors (1) are or were persons acting in an official capacity for or on behalf of a government; or (2) have a familial relationship to persons acting in an official capacity for or on behalf of a government.

1.2. Governing Law

The parties agree that the laws of Hong Kong Special Administrative Region shall govern in construing the provisions of the SRA and the parties agree to submit any disputes arising from the SRA to the non-exclusive jurisdiction of the courts of Hong Kong.

1.3. General

The following clause shall be added to the end of the Section titled "General":

Supplier shall duly comply with the applicable laws and regulations regarding the collection, use, security, and processing of any data relating to an individual that IBM may disclose and shall erase any such data upon termination of the SRA .

1.4. Intellectual Property

The following clause shall replace the first paragraph in the Section titled "Intellectual Property":

IBM will own the copyright in works of authorship that Supplier develops for IBM under this Agreement (Developed Works). If the copyright in any Developed Works are not vested in IBM, Supplier assigns the copyright of such works to IBM and shall execute or procure the execution of any documentation necessary to vest the copyright in IBM.

ACCEPTED AND AGREED TO:

IBM China/Hong Kong Limited

By:

ACCEPTED AND AGREED TO:

George P Johnson Company Hong Kong Limited

By:

Buyer Signature

Date

Michelle Lam

Printed Name

Procurement Manager

Title & Organization

Buyer Address

10/F PCCW Tower, Taikoo Place,
979 King's Road, Quarry Bay, Hong Kong

Supplier Signature

Date

Rebecca Yuen

Printed Name

Assistant General Manager

Title & Organization

Supplier Address

Unit 1701 Sino Plaza, 255-257 Gloucester Road,
Causeway Bay, Hong Kong